

Court No. - 3

Case :- WRIT - C No. - 17554 of 2016

Petitioner :- Jagat Singh

Respondent :- State Of U.P. And 5 Ors.

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

It is contended by learned counsel for the petitioner that recovery has been initiated against the petitioner without even providing him a copy of the provisional assessment bill, an opportunity to file an objection and fixing any date of hearing. Hence, the entire proceedings, initiated under Section 126 (2) of the Electricity Act, are illegal, arbitrary and unjustified.

Prima facie, the matter requires scrutiny.

Shri Pranjal Mehrotra has accepted notice on behalf of respondent nos.1 to 4 may obtain instructions in this matter within 10 days.

Put up as fresh on 03.05.2016.

Till then, no coercive action shall be taken against the petitioner.

Order Date :- 20.4.2016

m.a.

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Heard Sri Bhuvnesh Kumar Singh for the petitioner, learned Standing counsel for the State respondents no. 1, 5 & 6 and Sri Pranjal Mehrotra appearing for respondent nos. 2 to 4.

On 20.04.2016, Sri Pranjal Mehrotra, learned counsel for the respondent nos. 2 to 4 was granted time to seek instructions in the matter. He has produced before us the copy of the instructions, which is taken on record. From a perusal of the same, it is not clear as to how the provisional assessment notice dated 16.7.2015 was served upon the petitioner. It is contended on behalf of the petitioner that since he did not receive the copy of the provisional assessment notice, as such he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Sri Bhuvnesh Kumar Singh, learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 16.7.2015 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.1,74,350/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 16.7.2015 and the recovery citation dated 30.1.2016 and 15.02.2016

(annexure nos. 1 and 2 to the writ petition) are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 3.5.2016

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